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Case Number: 25PSCV02398 Hearing Date: June 25, 2026 Dept: G

Plaintiff Cynthia Romero's Motion for

Sanctions for Failure to Comply with Initial Disclosure and Document Exchange

Respondent:

Defendant Hyundai Motor America

TENTATIVE

RULING

Plaintiff

Cynthia Romero's Motion for Sanctions for Failure to Comply with Initial Disclosure and Document Exchange is GRANTED.

Monetary

sanctions are AWARDED in the amount of \$2,500.00, payable within fifteen (15) days of the issuance of this order.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On October 21, 2023, plaintiff Cynthia Romero (Romero) bought a car manufactured by defendant Hyundai Motor America (HMA).

On

June 30, 2025, Romero filed the Complaint, alleging a sole cause of action for breach of express warranty in violation of the Song-Beverly Act.

On April

13, 2026, Romero filed this motion for sanctions. On June 9, 2026, HMA filed the opposition, and on June 17, 2026, Romero filed the reply.

This

case is set for an informal discovery conference and a hearing on the motion on June 25, 2026.

ANALYSIS

Romero

moves for sanctions based on HMA's untimely compliance with the initial disclosure and document exchange requirements of the Song-Beverly Act.

For

the following reasons, the court GRANTS the motion.

Legal

Standard

In

2024, California reformed the Song-Beverly Act to reduce court congestion and facilitate early resolution by mandating initial disclosures and requiring the parties to participate in mediation shortly after the pleadings are filed. (Code Civ. Proc., § 871.26, subd. (b).) The Song-Beverly Act requires parties to

exchange initial disclosures and documents within 60 days of the filing of an answer or other responsive pleading, and to participate in mediation within 150 days. (Code Civ. Proc., § 871.26, subds.

(b), (d)–(e).) Until that mediation is

concluded, all other discovery is expressly stayed, aside from the two-hour depositions and the required disclosures.

(Code Civ. Proc., § 871.26, subd. (e).)

Manufacturers may affirmatively opt into the statutory scheme. (See Code Civ. Proc., § 871.30, subd.

(a).)

Under

the scheme, a vehicle buyer must provide to the vehicle manufacturer the sales or lease agreement, current registration, finance information, repair orders, pre-suit communications with the vehicle manufacturer, current mileage, primary

drivers, vehicle location and possession, collision or accident history, and aftermarket modifications. (Code Civ. Proc., § 871.26, subds. (f)–(g).) A vehicle manufacturer must provide to the vehicle buyer all vehicle-specific manuals, warranties, sales or lease documents, technical and service bulletins, warranty and service histories, internal communications, and policies or evaluations related to restitution or replacement requests. (Code Civ. Proc., § 871.26, subd. (h).) The documents and information must be produced without awaiting a discovery request and without the need for a protective order. (Code Civ. Proc., § 871.26, subd. (b).)

The scheme also gives the parties the right to conduct an initial two-hour deposition of the other. (Code Civ. Proc., § 871.26, subd. (c).) While the statute requires the initial document exchange to occur within 60 days of the responsive pleading and without a discovery request, the statute permits the initial deposition within 120 days. (Ibid.) Since the statute does not specify that depositions are required without a discovery request, it requires that a party only participate in the initial deposition when properly noticed.

If a vehicle buyer fails to comply and cannot show good cause, then the court must impose a \$1,500 sanction against their attorney for failure to timely produce the documents, payable within 15 business days. (Code Civ. Proc., § 871.26, subd. (j)(1).) If a vehicle manufacturer fails to comply and cannot show good cause, then the court must impose a \$2,500 sanction against their attorney for failure to timely produce the documents, payable within 15 business days. (Ibid.) If a vehicle buyer's noncompliance is repeated, then the court must dismiss the action without prejudice and award costs to the vehicle manufacturer. (Code Civ. Proc., § 871.26, subd. (j)(3).) If a vehicle manufacturer's noncompliance is repeated, then the court must impose an evidentiary sanction precluding them from introducing evidence regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so. (Code Civ. Proc., § 871.26, subd. (j)(4).)

Discussion

Romero

argues that HMA failed to timely comply with its obligations under the Song-Beverly Act. The court agrees.

The

Song-Beverly Act requires parties to exchange initial disclosures and documents within sixty (60) days of the filing of an answer. (Code Civ. Proc., § 871.26, subd. (b).) Failure to comply results in a \$1,500 monetary sanction against a vehicle buyer's attorney and a \$2,500 monetary sanction against a vehicle manufacturer's attorney. (Code Civ. Proc., § 871.26, subd. (j)(1).)

HMA

filed the Answer on February 4, 2026, so its initial disclosure and document exchange was due on April 6, 2026. (See Ans., p. 1.) According to HMA, it complied with the initial disclosure and document exchange on May 22, 2026. (See Knighton Decl., ¶ 8.) HMA contends that it had good cause to delay initial disclosures and document exchange because "court-side production had not commenced at the time the Answer was filed." (Opp., p. 2, citing Knighton Decl., ¶ 7.)

However,

the documents that a vehicle manufacture must produce, such as manuals, warranties, bulletins, histories, policies, and evaluations, are largely not case-specific. (See Code Civ. Proc., § 871.26, subd. (h).) A vehicle manufacturer that opts into the initial disclosure scheme of Section 871 should already have these documents and be prepared to provide these documents almost immediately. Regarding documents that are case-specific, the statute gives the parties sixty (60) days after a responsive pleading is filed to provide those documents. (See Code Civ. Proc., § 871.26, subd. (b).) The court finds a period of sixty (60) days is sufficient time to provide the vehicle buyer with their sales and/or lease documents and any other documents that are case-specific.

HMA does not explain why it could not locate and produce these documents within sixty (60) days.

(See generally Knighton Decl., ¶¶ 6–8.) Furthermore, even if Romero never asked HMA

about initial disclosures before the deadline, the statute requires compliance regardless of any party's request for discovery. (See Code Civ. Proc., § 871.26, subd. (b).) Since there was no good cause for the failure to comply with the initial disclosure requirement by the deadline, sanctions are mandatory.

Therefore,
Plaintiff's motion for sanctions is GRANTED.

CONCLUSION

For
these reasons, the motion for sanctions for failure to comply with initial disclosure and document exchange is GRANTED.

Counsel
for defendant Hyundai Motor America is ORDERED to PAY MONETARY SANCTIONS under Code of Civil Procedure section 871.26, subdivision (j)(1) in the total amount of \$2,500.00, payable within fifteen (15) business days of the issuance of this order.